

IN THE [COURT THAT ORDERED YOUR FIRST OFFENDER SENTENCE – STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL COURT; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA,
Plaintiff,

v.

JOHN DOE,
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO RESTRICT AND SEAL FIRST OFFENDER RECORDS FOR A SENTENCE IMPOSED BEFORE JULY 1, 2026 THAT HAS NOT BEEN REVOKED, PURSUANT TO O.C.G.A. § 42-8-62.1(c)

STATUTORY AUTHORITY

O.C.G.A. § 42-8-62.1(c) – An individual who was sentenced pursuant to Article 3 of Chapter 8 of Title 42 prior to July 1, 2026 and has not had their sentence revoked and adjudicated guilty may petition the court that ordered such sentence to limit public access to his or her case information pursuant to subsection (b). Notice of the petition shall be sent to the clerk of court and the prosecuting attorney, and notice sent by registered or certified mail or statutory overnight delivery is sufficient.

O.C.G.A. § 42-8-62.1(d) – Within 90 days of the filing the court shall order restriction and sealing. The former requirement that the court find by a preponderance of the evidence that a discharge had been granted and that privacy harm outweighed the public interest was struck, so relief on a properly filed petition is mandatory and no balancing showing is required.

O.C.G.A. § 42-8-62.1(e) – The clerk seals every document in its custody within 60 days of the court's order.

O.C.G.A. § 42-8-62.1(f) – Law enforcement agencies, jails and detention centers must restrict within 30 days of receiving a copy of the order.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court of the State of Georgia in Sample County (synthetic sample venue) that ordered the First Offender sentence, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Georgia.

II. PARTIES

3. Defendant is JOHN DOE, whose address is 1000 Sample Street, Atlanta, GA 30303.

4. Plaintiff is the State of Georgia.

III. FACTS AND CASE HISTORY

5. On or about 09/30/2020, Defendant was charged with Offence stated in the participant's own First Offender sentencing record (synthetic sample charge) by Sample County Sheriff's Office (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. On 03/11/2021, the matter was resolved with the following disposition: Sentenced under the First Offender Act; status not revoked and no adjudication of guilt entered (synthetic sample disposition).

8. The offense grade was: Felony (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Defendant may be eligible for restriction and sealing on the following basis: restriction and sealing under O.C.G.A. § 42-8-62.1(c) (Defendant states the First Offender sentence was imposed before July 1, 2026 and has not been revoked).

10. Defendant states Defendant was actually sentenced under Georgia's First Offender Act in the original case (synthetic sample answer).

11. Defendant states the First Offender sentence was imposed before July 1, 2026, on the sentencing date stated above (synthetic sample answer).

12. Defendant states the court has not revoked Defendant's First Offender status and no adjudication of guilt has been entered in the case at any time (synthetic sample answer).

13. Defendant states the case is still active or a discharge has not yet been entered (synthetic sample answer).

14. Defendant states which office prosecuted the case for the county, as read from Defendant's own court record (synthetic sample answer).

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the restriction and sealing of the case information for the First Offender case in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to restrict access to all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
1000 Sample Street, Atlanta, GA 30303

Date: _____

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Notice of the petition shall be sent to the clerk of court and the prosecuting attorney. Notice is not a request for consent and there is no advance-consent requirement on this route; the statute creates no objection period and no objection-triggered hearing branch. Notice sent by registered or certified mail or statutory overnight delivery is sufficient; hand delivery or e-filing may also be used, certified in a certificate of

service.

I certify that on _____, I served a copy of this Petition upon the clerk of court and the prosecuting attorney for the county (the District Attorney or the Solicitor-General, as applicable) at the following address:

[CLERK OF COURT AND PROSECUTING ATTORNEY SERVICE ADDRESSES – CONFIRM BOTH WITH THE CLERK OF THE SENTENCING COURT]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JOHN DOE

Date: _____

PROPOSED ORDER

IN THE [COURT THAT ORDERED YOUR FIRST OFFENDER SENTENCE – STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL COURT; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA v. JOHN DOE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Georgia Crime Information Center of the Georgia Bureau of Investigation, the clerk of this Court, and the county and municipal law enforcement, jail and detention center records custodians for this matter, Sample County Sheriff's Office (synthetic), and all other criminal justice agencies with records pertaining to this matter are hereby directed to restrict access to and seal all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Certificate of Service
- Exhibit A – Copy of the final disposition obtained by the participant from the clerk
- [PROPOSED] ORDER (for the court's signature)

Prepared by defendant using LegalEase RCAP. This is not an official court form.